

The painting

Painted about 1875, roughly forty years after the meeting it shows, by an artist who was not there. No portrait of Batman was made while he was alive, so his face here is invented.



John Wesley Burt, circa 1875. State Library of Victoria, H92.196.

WHAT TO LOOK AT

- 1

The goods on the cloth

Two white cloths spread on the grass, with red cloth, small mirrors and beads laid out. This is the painting's record of what was offered for about 240,000 hectares of land.
- 2

The men laying them out

Colonists kneeling over the cloths, arranging the goods. One stands behind them with a gun. The painting puts armed men at a meeting it otherwise shows as friendly.
- 3

Batman, and the paper in his hand

Batman in a white shirt and red tie, holding a document: the deed itself, inside the picture. The Kulin man facing him rests a hand on his shoulder. Neither man's face was painted from life.
- 4

The Kulin men

Men of the Kulin Nation in possum-skin cloaks, holding long spears and an oval shield. Not one of them is named in the painting or in its catalogue record.
- 5

The camp

Bark shelters, women, children and people seated on the ground, carrying on while the meeting happens. The painting shows a place already lived in.

A painting says Batman bought this land. A Proclamation says that was never possible. Which do you trust, and why?

The Proclamation

Ten weeks after the meeting in the painting, the Governor of New South Wales declared that no settler could buy land from Aboriginal people, and that Batman's treaty was worth nothing.

Whereas, it has been represented to me, that divers of His Majesty's Subjects have taken possession of **1** vacant Lands of the Crown within the limits of this Colony, **2** under the pretence of a treaty, bargain, or contract, for the purchase thereof, with the Aboriginal Natives;

Now therefore, I the Governor, in virtue and in exercise of the power and authority in me vested, do hereby proclaim and notify to all His Majesty's Subjects, and others whom it may concern, that every such treaty, bargain, and contract with the Aboriginal Natives, as aforesaid, for the possession, title, or claim to any Lands lying and being within the limits of the Government of the Colony of New South Wales, **3** is void and of no effect against the rights of the Crown;

and that all Persons who shall be found in possession of any such Lands as aforesaid, without the license or authority of His Majesty's Government, for such purpose first had and obtained, **4** will be considered as trespassers, and liable to be dealt with in like manner as other intruders upon the **1** vacant Lands of the Crown within the said Colony.

Given under my Hand and Seal, at Government House, Sydney, this **5** twenty sixth Day of August, One thousand eight hundred and thirty five. (signed) Richard Bourke.

Proclamation of Governor Sir Richard Bourke, 26 August 1835. Abridged; spelling and capitals as written.

THE PHRASES TO LOOK AT

1 **‘vacant Lands of the Crown’**

The land is called empty and the Crown's. Read on: the same sentence admits there were Aboriginal people there to make a treaty with. The document contradicts itself in four lines.

2 **‘under the pretence of a treaty’**

‘Pretence’ decides the question before it is argued. To Bourke, Batman's deed is not a treaty that failed, it is an excuse.

3 **‘void and of no effect’**

The ruling. Not that this particular treaty was unfair, but that no such treaty could ever count, because only the Crown could grant land.

4 **‘considered as trespassers’**

The consequence. A settler holding land bought from Aboriginal people is not an owner but an intruder.

5 **The date**

26 August 1835, about ten weeks after the June meeting the painting shows. The painting was made forty years after both.

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